

JACKSON, J., dissenting

Applying the majority's new Presidential accountability model thus seems to involve bearing down on the indictment's allegations and making a series of determinations about the nature of the conduct at issue. From the structure of the paradigm, it appears that the first decision point is whether the alleged criminal conduct involves one of the President's "core" powers. If so (and apparently regardless of the degree to which the conduct implicates that core power), the President is absolutely immune from criminal liability for engaging in that criminal conduct. If not, then one must proceed to consider whether the conduct qualifies as an "official" act or "unofficial" act of that President. If the crime is an official act, the President is presumptively immune from criminal prosecution and punishment. But even then, immunity still hinges on whether there is any legal or factual basis for concluding that the presumption of immunity has been rebutted. Alternatively, if the charged conduct is an unofficial act (a determination that, incidentally, courts must make without considering the President's motivations, *ante*, at 618), the President is not immune.⁴

Constitution vests exclusively in the Executive, much less that the Judiciary is being conscripted to adjudicate the propriety of such a statute. To the contrary, the indictment here invokes criminal statutes of general applicability that everyone is supposed to follow, both on and off the job. So, the real question is: Can the President, too, be held accountable for committing crimes while he is undertaking his official duties? The nature of his authority under Article II (whether conclusive and preclusive, or shared with Congress, or otherwise) is entirely beside the point.

⁴JUSTICE BARRETT's version of the Presidential accountability paradigm works slightly differently; she would have us ask, first, "whether the relevant criminal statute reaches the President's official conduct." *Ante*, at 652. But, again, what is at issue here are statutes of general applicability—they only "reach" the President's conduct to the extent that he chooses to engage in the prohibited behavior. See n. 3, *supra*. JUSTICE BARRETT's framing, thus, sidesteps the fact that, when immunity is being considered, what is actually at issue is whether the President is exempt from punishment if he opts to exercise his official duties using means that violate criminal law.